

(49)

Tentative Ruling

Re: ***Gill v. Fresno Community Hospital and Medical Center et al.***
Superior Court Case No. 23CECG05021

Hearing Date: August 27, 2026 (Dept. 502)

Motion: By Defendant Sharon Kopacz, M.D. for Summary Judgment

Tentative Ruling:

To continue the hearing on the motion for summary judgment to December 3, 2026 at 3:30 p.m. in Department 502. The deadlines for opposition and reply papers will remain the same as for the original hearing date with respect to Manpreet Gill.

Counsel of record for plaintiff Yawinder Singh, Ikuta, Hemesath LLP, is directed to file and serve the proof of service of the order granting its motion to be relieved as counsel for Yawinder Singh within five days.

Explanation:

On February 19, 2026, the court granted a motion to withdraw filed by Ikuta Hemesath, LLP ("Ikuta"), then-counsel for plaintiff Yadwinder Singh ("Singh"). However, withdrawal would only be effective upon filing the proof of service of the order granting the motion to be relieved as counsel. Ikuta has not filed the proof of service. Accordingly, Ikuta remains counsel of record, and Singh remains represented.

On April 1, 2026, defendant Sharon Kopacz, M.D. ("Defendant") filed the present motion for summary judgment ("MSJ"). The proof of service for the MSJ indicates that Singh was served in pro per. At the time of service, Ikuta was, and presently is, still the counsel of record for Singh. Therefore, service is defective as to Singh.¹ (Cal. Rules of Ct., rule 1.21(a), (c).)

In the likely event that Ikuta intended to give effect to the court's order of relief, and due to the court's impacted docket, the court finds good cause for a continuance. Hearing on the present motion is continued to December 3, 2026, 3:30 p.m. in Department 502 with the deadlines for opposition and reply remaining the same for Manpreet Gill. Ikuta is ordered to file the requisite proof of service terminating representation within five days. Additionally, Defendant will take appropriate measures to effect service on Singh.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

¹ The court notes that the proof of service indicates service on Ikuta as to plaintiff Manpreet Gill only.

